Part B – Shire Wide Requirements

Natural Hazards, Environment, Utilities and Aboriginal Cultural Heritage

PART B - SHIRE WIDE REQUIREMENTS

B1 Natural Hazards

B2 Environment

- **B2.1 Existing Vegetation Management**
- **B2.2 Vegetation and Tree Management – Land and Prescribed Vegetation to which Chapter 2, State Environmental Planning Policy (Biodiversity and Conservation) 2021 applies**
- **B2.3 – Vegetation and Tree Management – Private Land**
- **B2.4 – Vegetation and Tree Management – Public Land**
- **B2.5 Contaminated Land**
- **B2.6 Conflicting Land Uses**

B3 Utilities, Stormwater and Transportation Infrastructure

B4 Aboriginal Cultural Heritage

B5 Development Contributions

Application

This section applies to all development applications within Kempsey Shire. It is a pre-requisite to determining whether a development application is likely to meet the overarching DCP objectives for managing natural hazards, the environment (vegetation management), environmental issues (contaminated land and conflicting land uses), utility services and transportation, infrastructure and Aboriginal cultural heritage.

This section also applies to development where development contributions may be required and outlines a summary of applicable development controls for various zones throughout Kempsey Shire.

Where compliance with the requirements in **Part B** is achievable, a Development Application should then address the applicable Place Based and Land Use provisions addressed in **Part C** and **Part D** of the DCP respectively.

Purpose

Part B provides specific controls aimed at reducing risk from an identified natural hazard such as flooding, bushfire, land and coastal vulnerability, as well as reducing potential impacts from development on the natural environment and Aboriginal cultural heritage and ensuring the sufficient provision of transportation, stormwater and utilities services infrastructure.

A summary of applicable development controls and specific requirements for Development Contributions are also addressed within **Part B**, as these apply across the Shire, irrespective of the development location or development type.

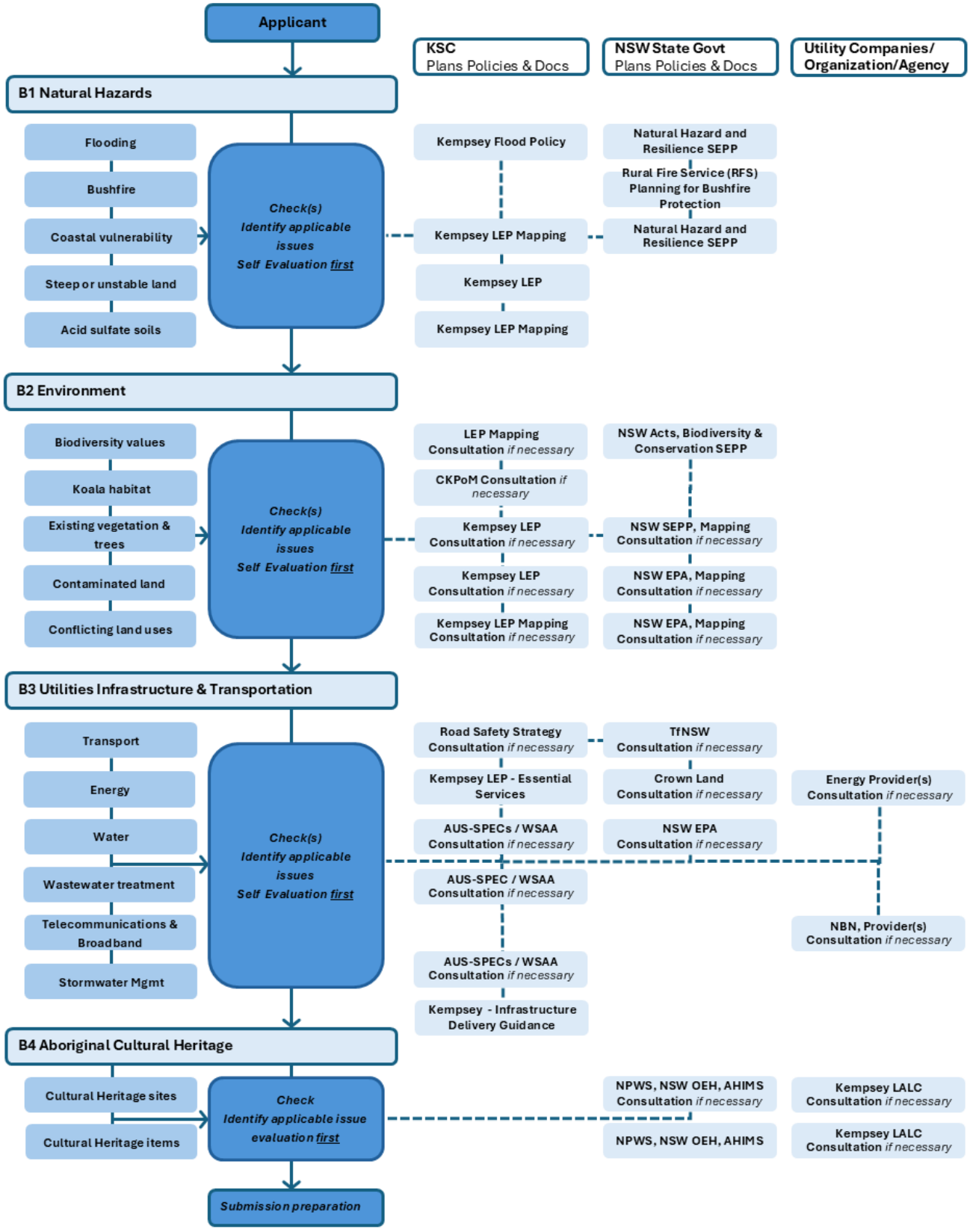


Figure B.1 – DCP Part B – four (4) key aspects that highlight local development feasibility

B1 NATURAL HAZARDS

Application

Part B1 applies to any/all development on a site and identified as being situated or impacted by the issues on the following maps:

1. Flood hazard – refer to flood planning mapping located through Kempsey Shire Council's website
2. Bushfire hazard – refer to maps located on NSW Planning Portal Spatial Viewer and NSW Rural Fire Service (RFS) websites.
3. Coastal vulnerability areas – refer to maps located at NSW Planning Portal Spatial Viewer (web based maps)
4. Steep or unstable land – refer to maps located at NSW Planning Portal Spatial Viewer, and NSW Sharing and Enabling Environmental Data (SEED) websites.
5. Acid sulfate soils – refer to maps located on NSW Planning Portal Spatial Viewer (web based maps).

Objectives

1. Development is responsive to site constraints and opportunities, while minimising exposure to natural hazards, such as flooding, bushfire, coastal vulnerabilities, steep or unstable land or acid sulfate soils.
2. Development complies with the requirements, guidelines and measures of Kempsey Local Environment Plan and Kempsey Policy on all natural hazards.
3. Prevent the creation of new areas of inappropriate urban development in natural hazard risk zones.
4. Development occurs on suitable locations and sites that avoids natural hazards and future natural hazard risk and through mitigation that does not excessively damage, alter or impact the natural and built environment.
5. Complete the clearance of the Kempsey CBD floodway.
6. Recognise the risks and take account of development on sensitive and vulnerable coastal areas now and in the longer term.

The following desired outcomes and development control requirements in **Table B.1** apply:

Table B.1 – Natural Hazards – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Flooding	
1.1 Development appropriately addresses the constraints of flood prone land . 1.2 Development does not have a significant impact on the natural conveyance of floodwaters. 1.3 Development avoids areas identified as high flood.	a. Development is undertaken in accordance with the requirements of the relevant Council Flood Policy, other policies, guidelines, adopted flood studies and Flood Risk Management Plans to address development in flood prone areas. b. Critical facilities (vulnerable types of developments such sub-stations, hospitals, aged care, kindergartens and schools etc) located in low flood risk (refer to Flood Planning Levels [FPLs] in Kempsey Flood Policy) parts of the Macleay River Floodplain ensure the safety of people, inhabitants and users and ensure an Evacuation Plan is in place, appropriate emergency response provisions are provided and a Flood Response Assessment Plan is prepared. c. Development for any critical facilities and emergency response and recovery facilities are located in low risk flood prone area (above the relevant Flood Planning Level [FPL] – in accordance with Kempsey Flood Policy) on the Macleay River Floodplain ensure continued

Desired Outcome	Development Control Requirements
	operation during and after flood events up to and including the Probable Maximum Flood (PMF).
1.4 Subdivision and/or development of land provides flood free building area within lot for habitable buildings and appropriate level areas for rural, commercial and/or industrial buildings in accordance with the relevant land zone, flood risk and requirements of Council Policies, guidelines, adopted flood studies and Flood Risk Management Plans addressing development in flood prone areas. 1.5 Subdivision and/or development of land provides the appropriate refuge and/or physical access in flood situations to give safe access for people and/or stock in accordance with the permissible land zone activities, Council Policies, guidelines and Flood Risk Management Plans.	a. Development must not significantly alter flooding patterns and flood flows. b. Development of internal roads is designed to respond to the natural topography of the site and minimise the extent of cut, fill and embankments, particularly where these would result in adverse visual, drainage, stability or amenity impacts. c. Development of internal roads do not form significant embankments that imped flood flows. d. Flood mounds where proposed must be approved by Council. Depending on development scale, location and conditions, flood mounding may require site specific flood impact assessment, including hydrological modelling and mitigation measures to Council's requirements. e. Proposed subdivision and/or development must comply with the relevant requirements of Council Flood Policy, other policies, guidelines, adopted flood studies and Flood Risk Management Plans addressing development in flood prone areas.
2. Bushfire	
2.1 Development appropriately mitigates the risks associated with development on bushfire prone land. 2.2 Development ensures that the risks associated with bushfire prone land is managed in accordance with *Planning for Bushfire Protection 2019* (or as otherwise updated).	a. Development on land classified as bushfire prone on the Rural Fire Service (RFS) mapping and/or NSW Planning Portal Spatial Viewer complies with current Planning for Bushfire Protection provisions. b. A Bushfire Risk Assessment Report, or self-assessment where permitted by current RFS requirements, is lodged in support of the Development Application for development on land classified as bushfire prone. The Bushfire Risk Assessment Report is prepared by a suitably qualified and experienced bushfire consultant (where required) and addresses the proposed development's consistency with current Planning for Bushfire Protection provisions. c. Development is designed so that any bushfire protection measures necessary in accordance with current Planning for Bushfire Protection provisions are able to be implemented / placed wholly within the development site, and not on neighbouring property, including Council reserves, unless suitable legal arrangements, such as an easement, are provided to secure the ongoing management of the bushfire protection measures. d. Any clearing of native vegetation is kept to minimum levels in accordance with the recommendations of the Bushfire Risk Assessment Report and the requirements of

Desired Outcome	Development Control Requirements
	current Planning for Bushfire Protection provisions.
3. Coastal Vulnerability	
3.1 Development is sited, designed and constructed to be compatible with coastal environment, activities and risks and avoids significant adverse impacts from coastal hazards such as storm surges, extreme tides, inundation and erosion. 3.2 Development facilitates adaptive planning for natural hazard and risk of coastline erosion. 3.3 Development mitigates current and future risk from coastal hazards by taking into account the effects of coastal processes and climate change.	a. Development of land identified in Coastal mapping (Kempsey Shire - Coastal Use Area, Coastal Environment Area Mapping) (within NSW - Planning Portal Spatial Viewer) complies with the requirements of the *State Environmental Planning Policy (Resilience and Hazards) 2021*. b. Development is not permitted on land identified as a Coastal Vulnerability Area unless— i. if the proposed development comprises the erection of a building or works—the building or works are engineered to withstand current and projected coastal hazards for the design life of the building or works; and ii. the proposed development— 1. is not likely to alter coastal processes to the detriment of the natural environment or other land, and 2. is not likely to reduce the public amenity, access to and use of any beach, foreshore, rock platform or headland adjacent to the proposed development; and 3. incorporates appropriate measures to manage risk to life and public safety from coastal hazards; and 4. measures are in place to ensure that there are appropriate responses to, and management of, anticipated coastal processes and current and future coastal hazards.
4. Steep and/or Unstable Land	
4.1 Development avoids steeply sloping land (refer **Table B2 – Steep and Unstable Lands**) for outline guidance. 4.2 Development design responds appropriately to site topography; slope, stability and ground conditions and soils. 4.3 Appropriate measures are adopted during the construction of the development and/or subdivision to avoid soil stability problems.	a. Slope and slope stability issues are given due consideration (refer NSW Land and Soil Capability Mapping) in the preparation of subdivision and/or development layout and design: i. Buildings and structures are to be located on land with a slope less than 20% and are not in an area known or likely to be subject to site stability problems. A geotechnical report is provided if requested by Council. ii. An application for buildings/structures on land with a slope of 20% or greater, or proposed to be located in an area known or likely to be subject to site stability problems, is accompanied by a geotechnical report. b. In areas suspected of containing low strength soils which may require special foundation

Desired Outcome	Development Control Requirements
	design for future building construction, geotechnical investigation will be required to identify land so affected. c. Where in the opinion of Council, the proposed development or construction of the subdivision requires further investigation of a geotechnical nature, the developer will be required to submit a geotechnical report prior to the consideration of the development application. This report is to be prepared by persons suitably qualified and experienced in the field of Geotechnical investigations. d. A geotechnical report, prepared by a suitably qualified and experienced person, may be submitted with any development application involving natural ground slopes of an excessively steep nature. The geotechnical investigation should address the proposed development or subdivision works and the proposed building/s to be erected on the land. **Note** – This requirement will not apply where intended future development is not to be located on that part of the site containing excessively steep slopes. e. Any geotechnical report is to take into consideration the implications of site regrading in relation to the existing natural environment. f. Site regrading should be minimised.

Table B.2 – Steep and Unstable Lands: Topography

Slope	Potential Hazard	Development suitability
< 1:20 (0-5%)	Flooding, high shrink swell soils, gravelly soils.	Drainage, stormwater reserve, open space. All types of subdivision.
1:20 – 1:10 (5 – 10%)	Shallow soils, stony/gravel soils, overland flow and poor surface. Profile drainage, deep, swelling, erodible or dispersible soils.	All types of subdivision.
1:10 – 1:7 (10 – 15%)	Overland flow, geological constraints – possibility of mass movement, swelling and erodible soils.	Residential subdivisions for detached housing, multiple dwelling housing, residential flat buildings. Industrial subdivision for smaller footprint modular industrial buildings.
1:7 – 1:5 (15 – 20%)	Geological constraints – possibility of mass movement, swelling and erodible soils.	Residential subdivisions for detached housing of a suitable form and construction.
1:5 – 1:4 (20 – 25%)	Geological constraints – possibility of mass movement, high to very high erosion hazard.	Selective residential subdivision only of low density on lots larger than 500m^2.
>1:4	Geological constraints – possibility of	

Desired Outcome		Development Control Requirements
(> 25%)	mass movement, severe erosion hazard.	No type of subdivision is recommended.
5. Acid Sulfate Soils		
5.1 The incidence and level of Acid Sulfate Soils of the development site are identified. 5.2 Appropriate management measures are adopted for any Acid Sulfate Soils identified on the land to be developed.		a. Where required by Council, an Acid Sulfate Soil Management Plan is submitted addressing the relevant requirements of KLEP (based on ASS class of soils, site conditions, proposed development details and ground excavations). Note: Works triggering drainage/ acid sulfate exposure may require WMA approvals (Water Management Act 2000). b. Development does not disturb, expose or drain Acid Sulfate Soils and/or cause environmental damage. c. Where earthworks are proposed, Clause 7.2 of KLEP is complied with in any development application.

B2 ENVIRONMENT

Application

1. **Parts B2.1 - B2.4** applies to any development on either public or privately owned land, which involves the clearing or disturbance of vegetation, contaminated land, or conflicting land uses.
2. **Part B2.5** applies to any site that contains or is suspected of land, ground and/or soil contamination.
3. **Part B2.6** applies to any site or development that is, contains or is directly adjacent, land uses that produce, create, emit or impact amenity and/or nuisances such as noise, vibrations, dust, other airborne pollutants, wastewater and odour etc, and/or environmental impacts.

Objectives

1. To protect, enhance and maintain key physical, geological, biotic and aquatic features (environmental assets) of the natural environment, and by extension their habitat, and biodiversity values.
2. To facilitate existing landscape as an integral component of urban design and development in general.
3. To ensure that past land use activities that may have contaminated land is identified, considered and addressed in development on that and immediately adjacent land.
4. To ensure that environmental issues of potential public health, nuisance and neighbourhood amenity are identified, considered and addressed in development.

Strategic Context

The Macleay Valley is comprised of a range of terrestrial, aquatic and marine environments. Due to its location, size and topography, the Shire spans both subtropical and temperate climatic zones and contains a diverse array of flora and fauna that have biodiversity and conservation significance.

The settlements across Kempsey Shire are valued places to live for the community, and they are critical to local environmental public health and amenity qualities. These settlements will continue, with different needs for preservation and change.

Both the natural and built environments are key assets that makes Kempsey Shire a highly valued place to live and are critical to the preservation and enhancement of local environmental and amenity qualities.

"Rural" and natural environments

The key threats are native habitat loss or change through weed invasion and pest animals. These threats are often associated with growth and competing land uses. Land clearance and modifications for rural activities can place pressure on environmental values and on local amenity.

The management of the natural environment in Kempsey Shire allows for rural activities and growth for production while protecting, maintaining, restoring and connecting the rich biodiversity and amenity of our rural areas for current and future generations.

"Urban" settlements and built environments

Landscape and vegetation are key visual elements of these settlements, contributing significantly to local character, neighbourhoods, streetscapes and the public domain. These enhance the positive experience of residents and visitors.

The DCP manages appropriate development within the settlements of Kempsey Shire, ensuring that vegetation clearing is permitted only where necessary, whilst ensuring that the environmental qualities and amenity values of those areas are maintained and protected, appropriate to the urban locality.

Effective management of environmental assets is one of the key components of achieving sustainable development and is therefore a fundamental requirement in developing rural and urban land across Kempsey Shire. The DCP encourages appropriate growth in existing, established urban settlements and rural areas that will generally not impinge on the Shire's important natural environment and amenity values. Management of vegetation is fundamental to retaining the unique character of rural areas, adjacent landscapes and urban settlements.

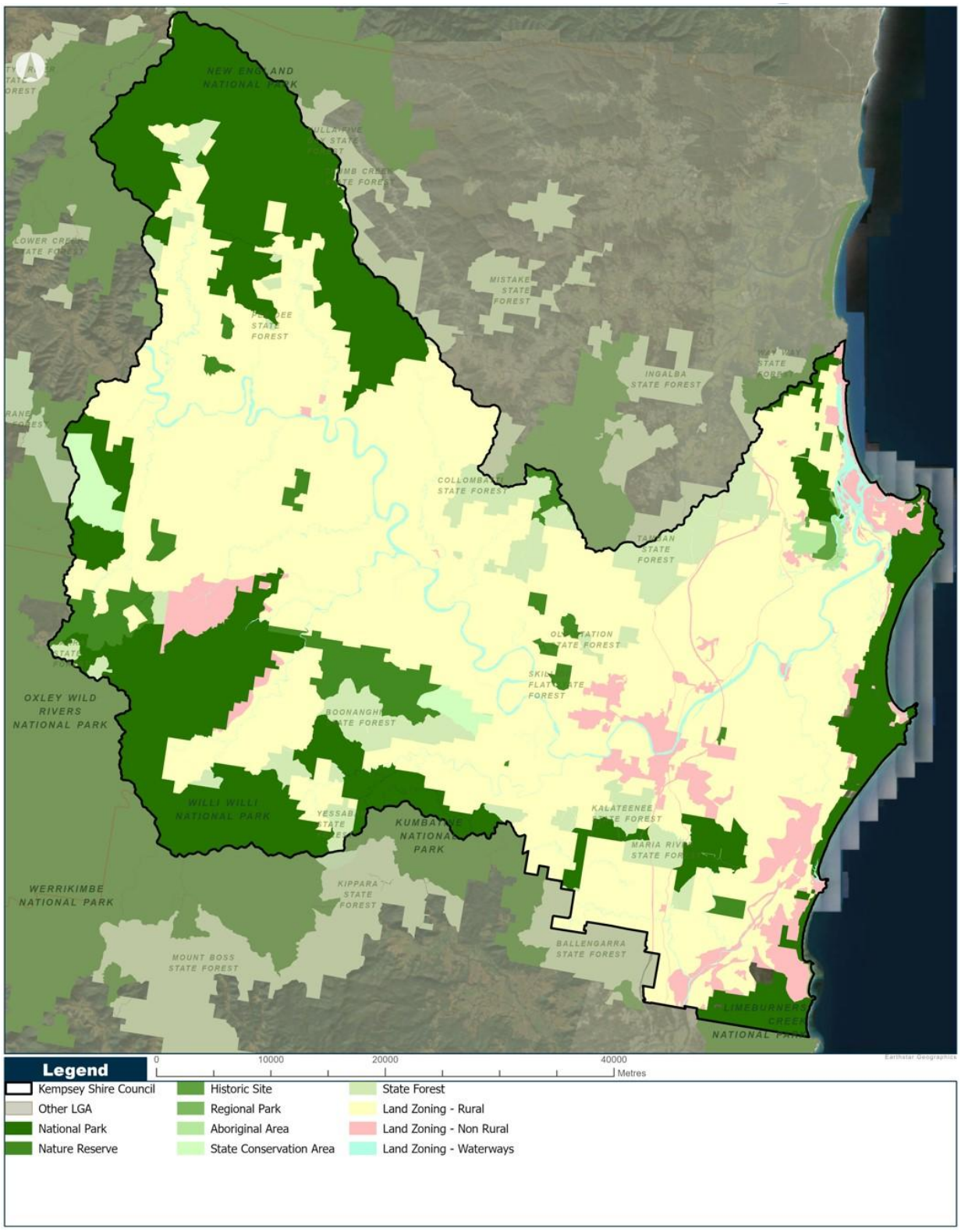


Figure B.2 Kempsey Shire - Macleay Valley vegetation; Rural lands and Non-rural land zones assist in defining how existing vegetation is to be managed through the DCP.

B2.1 Existing Vegetation Management

Application

1. For development on private or public land that includes aspects of proposed vegetation clearing or disturbance, the provisions of the *NSW Biodiversity Conservation Act (2016)*, the Comprehensive Koala Plan of Management (CKPoM), KLEP and this DCP apply.
2. For development that includes aspects of clearing or disturbance of vegetation **on rural zoned lands**, the *NSW Local Land Services Act (2013)* on native vegetation and the RFS guidance on bushfire protection measures also applies.
3. For development that includes aspects of clearing or disturbance of vegetation **on non-rural zoned lands**, *Chapter 2, Vegetation in Non-Rural Areas of State Environmental Planning Policy (SEPP) (Biodiversity and Conservation) 2021* and as identified on the following maps (all available through the NSW Spatial Viewer), also applies:
    a. Biodiversity Values (BV) Map
    b. High Environmental Values (HEV)
    c. Comprehensive Koala Plan of Management (CKPoM) Mapping
4. Where the proposed vegetation and/or tree activities do not form part of a development application or do not require a development application located on rural zoned lands (RU1 – Primary Production, RU2 – Rural Landscape, RU3 – Forestry and RU4 – Rural Small Lot), the provisions under the *Local Land Services Act 2013* apply.
5. For the clearance or disturbance of vegetation and/or trees where a development application (DA) is not required on non-rural zoned lands (R1 – General Residential, R3 – Medium Density Residential, RU5 – Village, R5 – Large Lot Residential, E1 - Local Centre, E2 – Commercial Centre, E3 – Productivity Support, E4 – General Industrial and MU1 – Mixed Use), a tree permit may be required.
6. To understand what situations may apply for the disturbance of vegetation, refer to information, guidance and mapping located on the NSW Planning Portal (Spatial Viewer), the NSW Rural Fire Service, North Coast Local Land Services and Kempsey Shire Council websites.
7. **Table B.3** summarises the development requirements involving the disturbance of trees and vegetation.

Table B.3 – Summary of development requirements involving existing trees and vegetation

Scenario	References	Authority	Submission (documentation may include)
Development Applications - all	*Environmental Planning and Assessment Act 1979* *Biodiversity & Conservation Act 2016* *SEPP Biodiversity and Conservation 2021* *Comprehensive Koala Plan of Management (refer also NSW Spatial Viewer to confirm)*	*NSW State Govt* *Rural Fire Service* *Kempsey Shire Council*	***Development Application:*** *Statement of Environmental Effects* *Plans and/or maps of existing vegetation and trees with information on species, condition, location and intentions (refer **Part D Development Requirements**)*

Scenario		References	Authority	Submission (documentation may include)
	Development(s) on rural zoned lands	*As above and;* *Bushfire Protection* *LLS (vegetation, trees and some agricultural aspects)* *KLEP* *DCP **Part B2, Parts C D3 and E***	*Rural Fire Service* *Local Land Services* *Kempsey Shire Council*	***Development Application*** *(as above)*
	Development(s) on non-rural zoned lands	*As above and:* *Bushfire Protection* *KLEP* *DCP **Part B2, Parts C D1-5 and E***	*Kempsey Shire Council* *Rural Fire Service*	***Development Application*** *(as above)*
*Existing tree and vegetation management and/or clearance **on rural zoned lands***		*LLS Act 2013* *LLS North Coast Guidance*	*Local Land Services* *Rural Fire Service*	*North Coast LLS requirements*
*Existing tree and vegetation management and/or clearance **on non-rural zoned lands***		*Kempsey DCP **Part B2**, and Council's Tree Permit requirements, www.kempsey.nsw.gov.au*	*Kempsey Shire Council*	***Tree Permit Application:*** *Site location plan* *Tree plan* *Tree(s) identification* *Tree value(s), condition* *Photographs* *Reason for mgmt/clearance* *Supporting evidence (Arborist Report – if required)*

Note: Sources of information on legislation, policy and guidance may change periodically. It is the responsibility of the applicant to verify and confirm the currency of such information prior to any formal submission and/or application.

Objectives

1. The natural environmental assets that are essential to the amenity and character of Kempsey Shire, and tree canopy cover are protected, as identified on the maps, documents, regulation and policies referenced above.
2. Vegetation prescribed under Chapter 2, Vegetation in Non-Rural Areas of State Environmental Planning Policy (SEPP) (Biodiversity and Conservation) 2021 is preserved (Note: prescribed vegetation is defined in **Table B.5 Prescribed Vegetation (trees) Categories** and in the Significant Tree Register (**Part E - Appendix 5**).
3. To outline the requirements for Council's identified existing vegetation; prescribed trees, various categories of vegetation and trees and "significant trees" that are worthy of preservation.
4. To achieve a balance between facilitating appropriate development (primarily in the urban areas/non-rural areas of Kempsey Shire), whilst conserving the most important biodiversity assets (particularly in the rural parts of the Shire) and maintaining the ecological processes that sustain them, through limited clearing of vegetation.

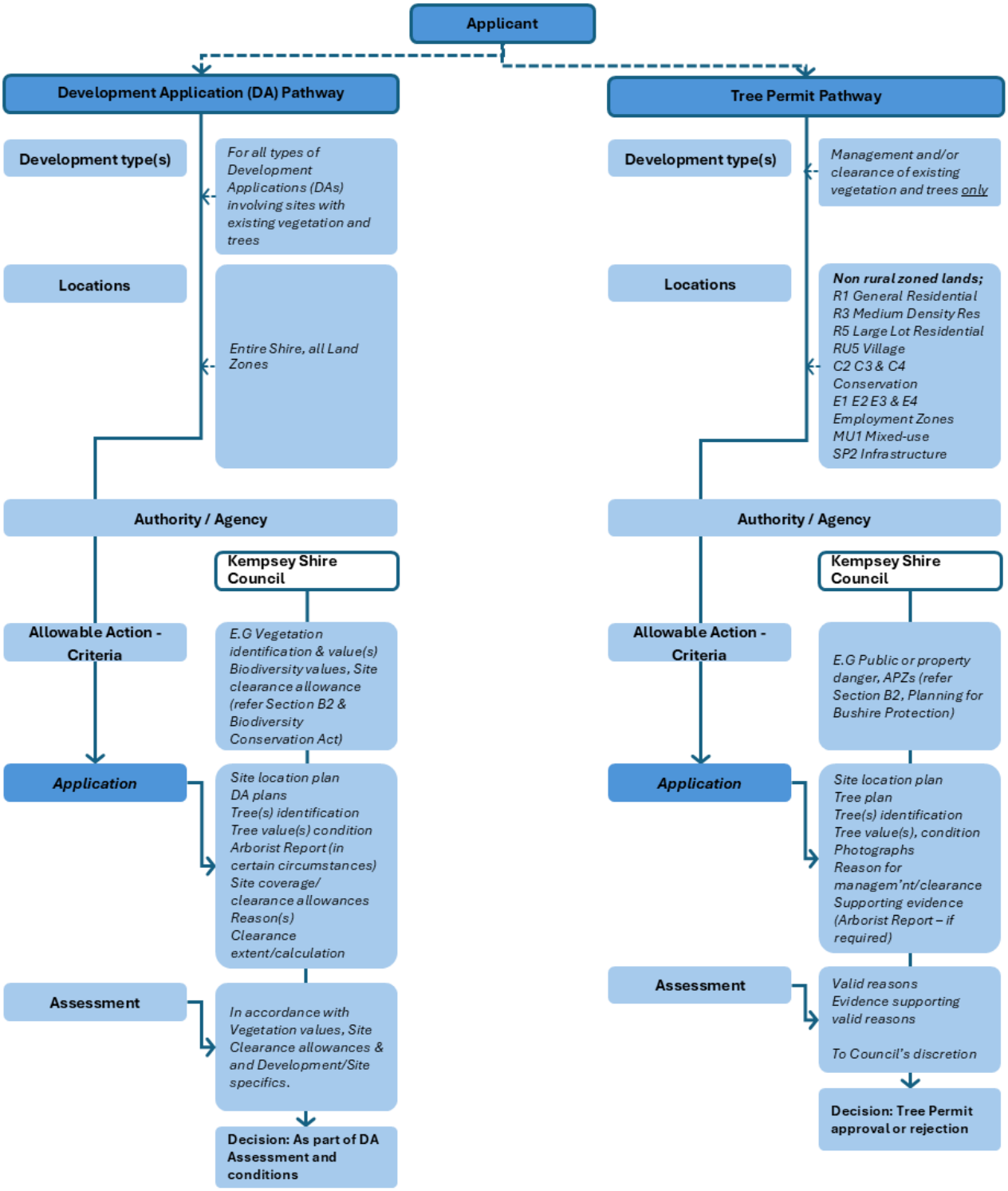


Figure B.3 – Existing Vegetation and Tree Management – approval pathways

B2.2 Vegetation and Tree Management - Land and Prescribed Vegetation to which Chapter 2, State Environmental Planning Policy (Biodiversity and Conservation) 2021 applies

The following desired outcomes and development control requirements in **Table B.4** apply:

Table B.4 – Vegetation and Tree Management – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. All Development – Vegetation and tree management	
1.1 The natural environmental assets that are essential to the amenity and character of Kempsey Shire, and tree canopy cover are protected. 2.1 Vegetation prescribed under Chapter 2, Vegetation in Non-Rural Areas of State Environmental Planning Policy (SEPP) (Biodiversity and Conservation) 2021 is preserved. 3.1 Applications for vegetation removal adhere to the prescribed criteria outlined in the Development Control Requirements.	a. Prescribed vegetation for the purposes of Chapter 2, Vegetation in Non-Rural Areas of the SEPP (Biodiversity and Conservation) 2021 is any tree identified in **Table B5**. b. The above criteria does not apply to a tree where the nearside trunk is within ten (10) metres from the nearest external wall of an existing, permanent dwelling or manufactured home and is located within the same property. Such trees may be removed without a permit or development consent. This provision does not apply to areas mapped as Core or Preferred Koala Habitat, or areas identified as containing a threatened ecological community. A permit will be required in these instances. **Note:** • Chapter 2 Vegetation in Non-Rural Areas of SEPP (Biodiversity and Conservation) 2021 provides for Council to declare vegetation that requires a permit for removal in a DCP. • Prescribed vegetation applies to urban and environmental zoned land, or as regulated under the SEPP (Biodiversity and Conservation) 2021. • The 10m distance is measured from the closest point of the trunk to the external wall. • A dwelling does not include a detached garage, pergola, deck or caravan.

Table B.5 – Prescribed Vegetation (trees) Categories

Ref	Categories	Description	*Explanation*
i.	**Trees** in, around or associated with **Aboriginal cultural** heritage artefacts, items or areas.	Aboriginal sites registered on Aboriginal Heritage Information Management System (AHIMS) Diligence Code of Practice for the Protection of Aboriginal	*These may include trees on cultural, spiritual sites and/or sites with functional resource purposes.*

Table B.5 – Prescribed Vegetation (trees) Categories			
Ref	**Categories**	**Description**	***Explanation***
		Objects in New South Wales (DECCW 2010).	
ii.	**Trees modified** or **traditionally modified trees** for or by traditional Aboriginal historic, cultural and heritage practices.	Individual trees or groups of trees outside identified cultural sites that are identified as having cultural or practical resource characteristics through Council records, site assessment or Aboriginal cultural heritage advice. Diligence Code of Practice for the Protection of Aboriginal Objects in New South Wales (DECCW).	*These may include trees of cultural, spiritual and/or resource purposes such as birthing or burial trees, scar or marked trees.* *Consultation with NSW Environment and Heritage and/or Kempsey LALC may be required.*
iii.	**Significant trees (cultural significance)**	Register of trees (individuals and small groups); based on selection criteria (1. Amenity values, 2. Community values and 3. Ecological values), refer **Part E**, **Appendix 5** Common name, botanic name, location, cluster or individual tree	*Specific "individual" tree or "groups" that are considered of community importance for their amenity, community, heritage, cultural and/or biological values for preservation.* Refer "Significant trees" Register **Part E – Appendix 5**
iv.	**Trees in heritage areas**, in or around heritage item(s) or curtilage.	Groups and clusters of trees associated with heritage items; buildings and/or sites.	*Trees in Heritage Conservation Areas (HCA). This criteria also covers other trees in historic/heritage situations that are not HCAs or are individually identified within the "Significant trees" register.*
v.	**Trees by size**	Criteria to six (6.0) mtrs height and specs to 150mm diameter (DBH) at base height.	*To protect and preserve mature trees where possible. Consistent with the "Code SEPP" (Exempt and Complying Development Codes) 2008.*
vi.	**Trees – Threatened species** or Threatened (fauna) species habitat, hollow bearing trees and/or feed trees	As listed under the *Biodiversity Conservation Act 2016* (NSW)or *Environment Protection and Biodiversity Conservation Act 1999 (Commonwealth)* Department of Planning and the Environment - Threatened Species Profiles	*Biodiversity Conservation Act Schedules.* *Local geographic representation maybe assisted by Biodiversity Values (BV) mapping, (which broadly includes High Environmental Values (HEV) and*

<table>
<tr><th colspan="4">Table B.5 – Prescribed Vegetation (trees) Categories</th></tr>
<tr><th>Ref</th><th>Categories</th><th>Description</th><th>Explanation</th></tr>
<tr><td></td><td></td><td>Maybe represented within BV mapping, (which will include specific HEV/TEC information) Department of Planning and the Environment - NSW BioNet Atlas
of Matters the National Environmental Significance (MNES) search</td><td>Threatened Ecological Communities (TEC) information.</td></tr>
<tr><td>vii.</td><td>Koala habitat (feed trees) trees</td><td>Reference only
Table B5.1 – Koala Feed Tree Species
Primary food tree species
Tallowwood — E. microcorys
Forest Red Gum — E. tereticornis*
Swamp Mahagony — E. robusta
Secondary/supplementary food tree species
*Includes the naturally occurring E. terreticornis x E. robusta hybrid, referred to as E. ‘patentinervis’ by Bale (1992)
Grey Gum — E. propin qua
White Stringybark — E. globoidea
Stringybark — E. tindaliae</td><td>Refer directly to the Comprehensive Koala Plan of Management (CKPoM.
Chapter 3 & 4 Koala Habitat Protection (Biodiversity & Conservation SEPP) for rural areas outside of the CKPoM area.

Refer Table B5.1 for Koala Feed Tree Species</td></tr>
<tr><td>viii.</td><td>Trees in, on or along riparian zones (Strahler system etc).</td><td>Vegetation and/or trees alongside streams and rivers</td><td>Applies to all waterways as per the Water Management Act 2000 (NSW). – Guidelines for Riparian Corridors Fisheries Management Act, 1994 for any area within 40m of waterways-Key Fish Habitat maps.</td></tr>
</table>

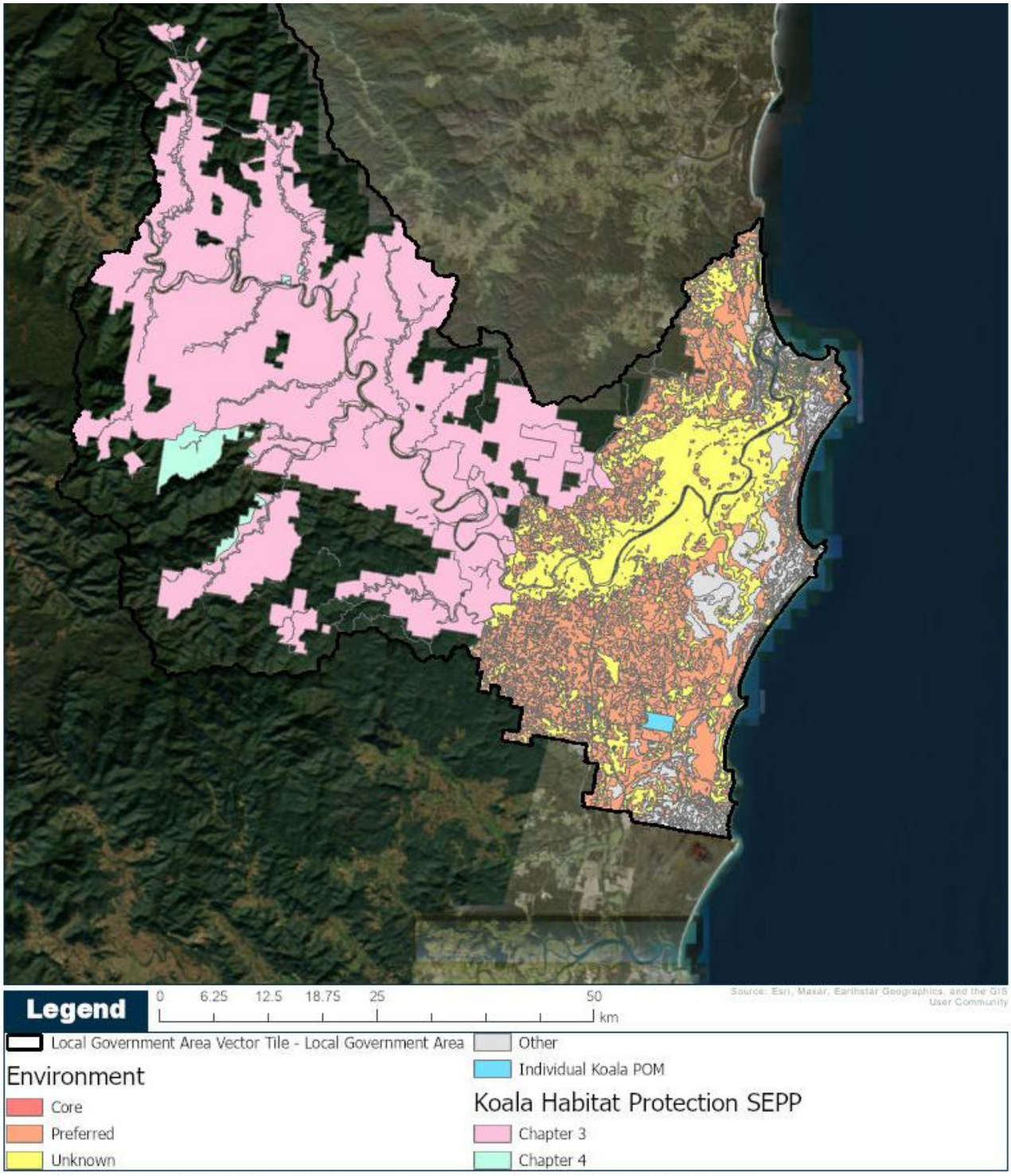


Figure B.4 – Tree preservation category v. "Koala habitat trees" – refer Comprehensive Koala Plan of Management (CKPoM) and mapping for detailed extent, coverage and habitat type

B2.3 Vegetation and Tree Management – Private Land

The following desired outcomes and development control requirements in **Table B.6** apply:

Table B.6 – Private Land – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. All Development – Vegetation and tree activities for private land	
1.1 For the modification, clearance or disturbance of vegetation or trees on non rural zoned lands (R1, R3, R5, RU5, E1, E2, E3, E4, MU1, SP1, SP2, C3 and C4 etc), where the intended vegetation and/or tree activities are part of a development application the provisions under the Biodiversity Conservation Act, KLEP and this DCP apply.	a. Vegetation/clearance must comply with the requirements and allowances of the Biodiversity Conservation Act for biodiversity value mapping, vegetation type, lot size and site clearance percentage. b. To remove vegetation (prescribed, protected or otherwise identified vegetation and/or tree) within a non-rural zone, information submitted as part of the DA to enable Council to assess the submission must include: i. Site location and plan ii. Vegetation mapping (if applicable) iii. Vegetation/tree identification and condition assessment iv. Proposed vegetation actions and reasoning (tree management/removal plan etc) v. Supporting information (photographic evidence etc) if necessary c. The requirement for an Ecologist and/or Arborist report for vegetation clearance, or tree modification or removal associated with a development application will be determined on merit by Council.
1.2 Proper consideration is given to existing trees and native vegetation in designing, planning and constructing development. 1.3 Development minimises injury to or destruction of trees and existing vegetation.	a. Refer to **Table B5 Prescribed Vegetation Categories** and **Part E – Appendix 5** "Significant Trees" Register for the types, categories and specific vegetation and trees that are prescribed for preservation and protection. b. Development must demonstrate the extent of existing vegetation and trees on-site and their proposed preservation, management and removal/clearance.
1.4 Development conserves and enhances high environmental value vegetation, threatened ecological communities and species, and contributes to increased habitat and tree canopy cover.	a. Trees and vegetation are retained, which have an intact structure and complete floristics, wherever practical. b. Development retains healthy individual trees that are a local native species or contribute to local amenity and/or aesthetic value.
1.5 Vegetation removal where allowed, adheres to the prescribed criteria outlined in this Development Control Plan, and Bushfire Protection Requirements.	a. Modification, clearance and/or removal of vegetation and/or trees is for the following reasons; i. Dead or dying ii. Structurally unsound iii. Diseased

Desired Outcome	Development Control Requirements
	iv. Substantial interference with existing private (neighbouring) property, public infrastructure and/or services v. Substantial interference with existing energy generation or solar heating appliance vi. Substantial threat to property or life vii. Within asset protection zones (APZs) for existing or proposed dwellings
1.6 The removal of undesirable exotics, priority weeds, dangerous trees and any other inappropriate plantings is facilitated.	a. Priority weed species trees and vegetation as listed in the current North Coast Regional Strategic Weed Management Plan may be removed and disposed of in accordance with that plan, in order to meet the requirements of the *Biosecurity Act*.
1.7 Existing trees are appropriately managed for form, shape, safety and maintaining their healthy condition.	a. Removal of dead trees, branches including palm fronds and the selective removal of branches up to and including a diameter of 50mm may be undertaken where the removal: i. Does not alter the canopy of the tree; and ii. Does not destroy the aesthetic appearance of the tree canopy; and iii. Does not alter the growth structure of the tree; and iv. Is carried out in accordance with the relevant Australian Standards for Pruning of Amenity Trees. b. The pruning of any trees or vegetation (as long as not a "Significant tree"), up to six (6.0) metres in height for the purpose of ornamental shaping is permitted without a permit or development consent.
1.8 Management, clearance or disturbance of native vegetation on rural zoned lands (RU1 – Primary Production, RU2 – Rural Landscape, RU3 – Forestry and RU4 – Rural Small Lot) must consider the environmental, ecological and be in accordance with Biodiversity Conservation, Rural Fire Service, Agricultural practices	a. For the clearance or disturbance of native vegetation on rural zoned lands where the intended vegetation and/or tree activities do not form part of a development application or do not require a development application, the provisions under the *Local Land Services Act 2013* apply.
1.9 Where revegetation, restoration or remediation is required, suitable species of trees are (re)planted that are appropriate to the local environment.	a. Suitable species of trees are planted that are local native species to the North Coast Bioregion, to make a positive contribution to visual and environmental amenity and ecological sustainability. (refer also **Part E – Appendix 5**)..
2. Non DA Tree Activities – Tree Permits and Tree Management	
2.1 For the modification, clearance or disturbance of vegetation and/or trees where a development application (DA) is not required, a tree permit may be required. Refer to Kempsey Shire	a. To remove a tree (prescribed, protected or otherwise notified vegetation and/or tree) within a non-rural zone, a tree permit application must be submitted. Applications must be completed stating the reasons for modification or removal, along with

Desired Outcome	Development Control Requirements
Council's website for existing tree and vegetation clearance guidance.	all supporting information to enable Council to assess such a submission. Legitimate reasons for modification or removal may include that the tree: vi. is dangerous; or vii. is dying and remedial pruning would not improve the deteriorated condition of the tree; or viii. is diseased; or ix. is structurally unsound; or x. has a history of branch fall (documented or photographic evidence to be provided); or xi. is substantially interfering with public infrastructure or services. b. Pruning or removal of trees must be undertaken in accordance with the relevant Australian Standards for Pruning of Amenity Trees and Protection of Trees on Development Sites. **Note** – The removal of trees to provide or enhance views to or from private property is not permitted. c. The requirement for an Arborist report for tree modification or removal will be determined on merit by Council.
2.2 Trees are appropriately managed for form, shape, safety and maintaining a healthy condition.	a. Removal of dead branches including palm fronds and the selective removal of branches up to and including a diameter of 50mm may be undertaken without a permit or development consent where the removal: i. Does not alter the canopy of the tree; and ii. Does not destroy the aesthetic appearance of the tree canopy; and iii. Does not alter the growth structure of the tree; and iv. Is carried out in accordance with the relevant Australian Standards for Pruning of Amenity Trees. b. The pruning of any trees or vegetation (as long as not a "Significant tree"), up to six (6.0) metres in height for the purpose of ornamental shaping is permitted without a permit or development consent.
2.3 Where replacement or other remedial planting is required, suitable species of trees are planted for the location.	a. Suitable species of trees are planted that are local native species to the North Coast Bioregion, to make a positive contribution to visual and environmental amenity and ecological sustainability.

B2.4 Vegetation and Tree Management – Public Land

The following desired outcomes and development control requirements in **Table B.7** apply:

Table B.7 – Public Land – desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. All Development – Vegetation and tree activities for public land	
1.1 Proper consideration is given to trees and native vegetation in designing, planning and constructing development.	a. Development must show the extent of existing vegetation/trees, plant identification, vegetation value(s) and scope of modification and/or removal with supporting reasons, where the proposed vegetation and tree activities are part of a Development Application (DA).
1.2 High environmental value vegetation and threatened ecological communities and species are conserved and enhanced and contribute to increased habitat and tree canopy cover. 1.3 Healthy individual trees are retained that are local native species, or of local amenity and aesthetic value that contribute to vegetated ridgelines and urban cooling, and to mitigate the effects of climate change. 1.4 Viable native trees and vegetation are retained, which have an intact structure and complete floristics, wherever practical.	a. Development must show the extent of existing vegetation/trees, plant identification, vegetation value(s) to ensure necessary preservation and/or protections where these apply.
1.5 Injury to or destruction of trees and native vegetation is minimised. 1.6 The removal of undesirable exotics, priority weeds, dangerous trees and any other inappropriate plantings are facilitated, to replace these with suitable local indigenous species to make a positive contribution to visual and environmental amenity and ecological sustainability. 1.7 For the disturbance of vegetation and/or trees where a development application (DA) is not required, a tree permit may be required. Refer to Kempsey Shire Council's website for existing tree and vegetation clearance guidance.	a. Trees on public land shall not be pruned or removed unless: i. Written consent is provided by Council; and ii. They are dead, dying, diseased or dangerous; or iii. They are causing damage to infrastructure on public land; or iv. They are impacting on pedestrian or traffic conditions; or v. They are interfering with services on private property; or vi. They impact on the outlook from historic sites or significant public viewing areas; or vii. The growth habit or mature size of the tree is undesirable in a particular situation, as determined by the General Manager or their delegates; or viii. The trees require removal to fulfil the requirements of section 100C of the Rural Fires Act 1997, as determined by Council. b. Where a tree removal on public land is approved, the removal maybe supervised by an appropriate person from Council, to Council's discretion. c. A native tree removed on public land is to be replaced by an approved species in a suitable location as determined by Council.

Desired Outcome	Development Control Requirements
	d. Council will not consider the pruning or removal of trees where the intent is to enhance the views of or from private property. e. Adhoc planting of trees or other vegetation within the road reserve (including public footpaths) is not permitted. Any planting that occurs in this manner will be removed and the road reserve restored at no cost to the Council. f. Council may consider permitting planting on public land by an Incorporated Community Group where accompanied by a detailed report. g. Council has no statuary obligation or onus to treat termites, however where a tree on public land is affected by termites, Council may grant permission for adjoining landowners to enter upon public land to treat termites where treatment does not include the destroying, pruning or removal of trees on public land. h. Any pruning, removal or treatment of any tree on public land must be undertaken in accordance with the relevant Australian Standards for Pruning of Amenity Trees and Protection of Trees on Development Sites. i. Council, or contractors working on behalf of Council, may modify or remove and dispose or priority weed species trees and vegetation as listed in the current North Coast Regional Strategic Weed Management Plan in accordance with that plan, in order to meet the requirements of the *Biosecurity Act, 2015*.

B2.5 Contaminated Land

Application

1. **Part B2.5** applies where there is the potential for development to occur on or adjoining contaminated land.
2. This part also applies to any/all development on a site and identified as being situated or impacted on Contaminated land - refer to list of notified land - NSW EPA website and information available from Kempsey Shire Council.
3. This part also applies to any/all development on a sites or sites that Council believes may be contaminated land through past activities, whether commercial, industrial or agricultural.

Objectives

1. Development is responsive to site constraints and opportunities, while minimising exposure to contaminated land.

The following desired outcomes and development control requirements in **Table B.8** apply:

Table B.8 – Contaminated Land – desired outcomes and development control requirements

Desired Outcomes	Development Control Requirements
1. All Development - Contaminated land	
1.1 Appropriate investigations are taken for any development on potentially contaminated land or neighbouring polluters on contaminated land.	a. Contaminated land investigations are undertaken for sites that have previously been used for any of the activities identified in **Table B.9** below, or that are otherwise identified as being contaminated land.
	Table B.9: Activities that may cause contamination
	Abattoirs, meat and produce processing
	Acid/alkali plant and formulation
	Agricultural/horticultural activities
	Airports
	Asbestos production and disposal
	Banana Plantations; forestry
	Chemicals manufacture and formulation
	Defence works
	Drum re-conditioning works
	Dry cleaning establishments
	Electrical manufacturing (transformers)
	Electroplating and heat treatment premises
	Engine works
	Explosives industry
	Gas works
	Iron and steel works
	Landfill sites and transfer stations/sites
	Metal treatment

Desired Outcomes	Development Control Requirements
1. All Development - Contaminated land	
	Mining, quarrying and extractive industries
	Oil production and storage
	Paint formulation and manufacture
	Pesticide manufacture and formulation
	Power stations
	Railway yards
	Sawmills for wood preservation
	Scrap yards
	Service stations and fuel depots
	Sheep and cattle dips
	Smelting and refining
	Tanning and associated trades
	Waste storage and treatment
	Note: This table is not definitive and is meant as a guide only -= a sites contamination status can only be determined after a review of the site history and if required, sampling and analysis. Due to the possibility of leaching and/or transmission of airborne contaminants, sites adjacent to those with an above listed use may also be at risk of contamination and warrant further investigation.
	b. In relation to contaminated land issues, Preliminary Investigations, Detailed Investigations, Remedial Action Plans and Measures for Validation and Monitoring are undertaken in accordance with the relevant legislation, SEPP and Guidelines.
1.2 Development design responds appropriately to any contaminated land identified on the site.	a. The application must demonstrate the achievement of the applicable Desired Outcome.
1.3 Appropriate remediation measures are undertaken for any identified contaminated land.	a. The application must demonstrate the achievement of the applicable Desired Outcome.
1.4 Sufficient amelioration, utilisation and/or buffering shall be included to screen, protect and reduce conflicting land uses from the impacts of contaminated land.	a. The application must demonstrate the achievement of the applicable Desired Outcome.

B2.6 Conflicting Land Uses

Application

1. **Part B2.6** applies to any situation where there may be conflict between different land uses – for example, between residences and offensive or hazardous industries, that are likely to have a negative impact on a use through the emission of noise, odour, dust and other nuisance or pollution effects.
2. This Part also applies where there is the potential for conflicting land uses to occur on sites which are located within proximity to offensive or hazardous uses, such as abattoirs, sewerage treatment works, sawmills, garbage depots, quarries, stock and saleyards and tick dip sites. Both specific sites and generic (potentially problematic) land uses are identified in **Table B.10**.
3. This Part also applies to all lands which are located within the nominated buffer distance from the nominated sites listed in **Table B.11**.

Objectives

1. To protect the level of operation of existing protected land uses from inappropriate development, and inappropriate surrounding development that would lead to the need to reduce the level of operation of such protected land uses.

2. To minimise the potential for conflict between potentially incompatible uses and existing protected land uses, in relation to noise, vibration, odour/smell, fumes, smoke, vapour, steam, soot, ash, dust, waste water, waste products, grit or oil, traffic generation, views or other nuisance or pollution conflicts.

To protect community amenity and the reliable operation of Kempsey Shire Council's sewage treatment plants (STPs), Council has set and adopted a policy with clear objectives, requirements and assessment rules that support and supplement development restrictions and requirements. The KSC Sewage Treatment Plant (STP) Buffer Zone Policy (STP Buffer Zone Policy) prevents land-use conflicts, minimises odour/noise impacts on sensitive receivers, and avoids complaint-driven retrofits and regulatory costs being shifted to ratepayers. This Policy applies to all subdivisions and development applications (DAs) affecting land within 400m of the boundary of any Council STP.

Table B.10 – Conflicting Land Use Buffers– desired outcomes and development control requirements

Desired Outcome	Development Control Requirements
1. Protected Land Uses (those land/sites not specifically nominated)	
1.1 The location and size of any buffers created for protected land uses are based on regulatory authority guidelines and reasonable assessment of the impacts of protected land-uses on existing and potential development that may potentially be incompatible.	a. The location and size of buffers created for an existing protected land-use, that encroaches on adjoining lands in different ownership, are to be designed based on consideration of the following matters: i. the previous long-term use of the site and the potential long-term continuation of the land use, development or activity; ii. the likely nature of and potential for conflict if dwelling houses are permitted in close proximity (as defined by the buffer zones/buffer distances stipulated in this section – refer **table B11**) to or within the sphere of influence of nuisance emissions from the subject site; iii. the burden any such buffer would place on the ability to develop adjoining lands. Particularly their ability to accommodate a single dwelling house outside of the buffer; iv. any history of complaints;

Desired Outcome	Development Control Requirements
	v. the size, scale and nature of the activity; vi. whether the existing land use, activity or development is of local, shire, regional or state significance and the impact its closure or cessation might have on infrastructure and/or essential services operations, employment opportunities and the economy of the Shire or locality; vii. the identification of a reasonable buffer distance in terms of the particular nuisance being submitted, for example odour, fumes, noise, dust and so on; viii. the extent to which the owners, operators and or managers have endeavoured to reduce emissions from the site and proposed measures to further improve the facility to reduce the impact of nuisance emissions. **Note: 1. -** The establishment of a buffer will not be accepted as a substitute for proper management, maintenance and continued efforts to minimize any nuisance resulting from the land-use, activity or development. **Note: 2. –** Section 4.15 of the *Environmental Planning and Assessment Act 1979* requires consideration of the environmental impacts of development in the assessment of any development application. Environmental impacts include impacts associated with noise, dust, odour and pollutants generated from development. **Note: 3**. - Reference NSW Environmental Protection Agency (EPA) policy and guidelines for acoustic and/or odour studies where relevant.
1.2 New development within the vicinity of protected land uses, not specifically nominated in this part, do not have an adverse impact on the operations of the protected land use.	a. The application must demonstrate the achievement of the applicable Desired Outcome.
2. Development Within Nominated Sites/Buffers	
2.1 Residential uses are not sited within nominated buffers in **Table B11** unless: i. the residential use is sited to minimise the potential impact of nuisance arising from the protected land use; ii. the residential use has no significant impact on the operation of the land use likely to produce noise, odour, dust, nuisance or pollution conflicts; and iii. where required, appropriate measures to reduce any conflict are provided.	a. The application must demonstrate the achievement of the applicable Desired Outcome.

Desired Outcome	Development Control Requirements
2.2 Non-residential uses are only sited within nominated buffers in **Table B11** if it can be demonstrated that it is compatible with the operations of the protected land use. A report must be prepared by a suitably qualified professional demonstrating to Council's satisfaction that the proposed use will not impinge on the continued operation of the protected land use.	a. The application must demonstrate the achievement of the applicable Desired Outcome.
2.3 The removal of existing vegetation within buffer areas is minimized, in order to maximize visual screening of protected land uses. **Note -** The use of minimum distances for buffers means that nuisance emissions from a protected land use will likely occur outside of the buffer and persons residing outside of buffers should not expect nil or no nuisance from the protected land use.	a. The application must demonstrate the achievement of the applicable Desired Outcome.

Table B.11: Nominated Sites with Conflicting Land Uses

Subject Site	Property Description	Average Buffer Width*
Frederickton Abattoirs	Lot 1713, DP 717943 Parish Yarrabandinni 151 Great North Road, Frederickton	500m
Kempsey Timbers Sawmill	Lot 1 DP 878995 Parish Yarravel 116 Armidale Road, Greenhill	750m
North Street Sewerage Treatment Works	Lots 5/6, Sec 29A, DP758556 Lot 33 DP 752439 Parish Yarravel North Street, West Kempsey	400m
Sewage Treatment Plant (future) – Central Kempsey	Lot 2 DP 565498, West Kempsey	400m
Sewage Treatment Plant (future) – Stuarts Point	Lot 1 DP1284907, Fishermans Reach Road Stuarts Point	400m
Sewage Treatment Plant – South Kempsey	Lot 271 DP 754400, 3A Woolford Crescent South Kempsey	400m
Sewage Treatment Plant – South West Rocks	Lot 503 DP 709042, 50 Belle OConnor Street, South West Rocks	400m
Sewage Treatment Plant – Crescent Head	Lot 1 DP 593105, 40 Belmore Street Crescent Head	400m
Sewage Treatment Plant – Hat Head	Lot 3 DP 217827, Gap Road, Hat Head	400m

Sewage Treatment Plant – Frederickton (Bellimbopinni)	Lot 121 DP 752412, 97 Yarrabandini Road, Bellimbopinni	400m
Sewage Treatment Plant – Gladstone	Lot 2 DP 709045, 54 Darkwater Street, Gladstone	400m
Stock and Saleyards & Agricultural Tick Dip Site 1	Lot 1 DP 530690 Parish Yarravel 42 Saleyards Road, West Kempsey	200m
Central Garbage Depot	Lot 7008 DP96356 Parish Beranghi 638 Crescent Head Road, South Kempsey	750m
Churchill Quarry	Lots 186, 187 & 189 DP754400, Lot 1 DP914805 & Lots 14 & 16 DP1157615 Parish Beranghi Crescent Head Road, South Kempsey	250m
Agricultural Tick Dip Site 2	Lot 18 DP 749161 Parish Yarravel 42 Turners Flat Road, Skillion Flat	200m
Agricultural Tick Dip Site 3	Lot 29 DP 752419 Parish Kullatine 57 Maineys Road, Turners Flat	200m
Agricultural Tick Dip Site 4	Lot 119 DP 752406 Parish Burragong Fischers Road, Corangula	200m

* **Note** - Buffer dimensions/distances are generally measured from the physical site development/plant rather than from the legal boundary of the site.

B3 UTILITIES, STORMWATER AND TRANSPORTATION INFRASTRUCTURE

Application

1. **Part B3** applies to any development that is required to provide essential utility services, stormwater and transport infrastructure (KLEP, "Essential Services") and telecommunications to adequately service the development, as identified on the relevant maps and information available from Council's website (www.kempsey.nsw.gov.au). Other Utility service authorities, suppliers and/or providers information must be obtained directly from them.

Objectives

1. To identify the availability, capacity and feasibility of the provision of essential utilities services, stormwater, transport and telecommunications infrastructure to enable and support sustainable development for the following aspects:
    - Water;
    - Energy;
    - Wastewater treatment;
    - Stormwater;
    - Transport; and
    - Telecommunications.
2. To ensure development can be provided with essential utilities services, stormwater, transport and telecommunications to meet minimum design and regulatory standards.
3. To ensure that development is provided with sufficient essential services, capacity and access in the event of hazards for emergency services response.
4. To provide suitable opportunities for sustainability initiatives to be incorporated in the provision of utilities and transport infrastructure.

The following desired outcomes and development control requirements in **Table B.12** apply:

Table B.12 – Water, Energy, Waste, Stormwater and Transportation Services Infrastructure

Desired Outcome	Development Control Requirements
1. Water	
1.1 Development is provided with an adequate potable water supply, with sufficient capacity for peak usage. 1.2 Development does not adversely, or negatively affect existing developments. 1.3 Development caters for the future (total known development). 1.4 Access to a supply of water with sufficient capacity for fire fighting in accordance with Planning for Bushfire Protection requirements.	a. Development is connected to reticulated water of sufficient capacity to meet the development demand, in accordance with Council's Infrastructure Delivery Guide and Council's AUS-SPEC/Water Supply Code of Australia (Water Services Association of Australia (WSAA)). b. In locations where no reticulated water source is available or connection feasible, a decentralised service to meet essential water quality, volume and pressure requirements is provided. c. Water supply system is designed in accordance with Council's standards and specifications including Council's AUS-SPECs, relevant Australian Standards and Water Supply Code of Australia (WSAA). d. Where discrepancies exist between AUS-SPEC or

Desired Outcome	Development Control Requirements
	WSAA and Council's standards and specifications, Council's standards and specification shall take precedence unless otherwise agreed in writing. e. Where development is on bushfire prone land, water supply is provided in accordance with current *Planning for Bushfire Protection* requirements.
2. Energy	
2.1 Development provides an adequate electricity supply.	a. Development is connected to an electrical power supply network of sufficient capacity to meet the development demand, and/or provides new or expanded electricity infrastructure in accordance with the requirements of the relevant energy provider. b. The developer shall meet all costs for the provision of infrastructure to service developments, unless otherwise determined by Council prior to issue of a development consent.
3. Wastewater Treatment	
3.1 Development is provided with adequate sewerage system and function. 3.2 Development does not adversely or negatively affect downstream infrastructure. 3.3 Development caters for the future (total known development).	a. Development is connected to a reticulated sewerage main of sufficient capacity to meet the development demand, where possible, in accordance with Council's Infrastructure Design Guide. b. Where not possible to comply with a. above, effluent disposal provides (refer **Part E – Appendix 6**) appropriate on-site disposal, designed in accordance with the relevant Australian Standards for On-site Domestic Wastewater Management and an On-site Sewage Management Assessment Report to support sewage treatment proposals is to accompany an application for this type of development. c. Wastewater system is designed in accordance with Council's standards and specifications including Council's AUS-SPECs, relevant Australian Standards and Water Supply Code of Australia (WSAA). d. Where discrepancies exist between AUS-SPEC or WSAA and Council's standards and specifications, Council's standards and specification shall take precedence unless otherwise agreed in writing.
4. Stormwater Management	
4.1 Development provides sustainable stormwater infrastructure integrating water sensitive urban design principles as part of an integrated stormwater management system.	a. Development achieves the integrated management of stormwater to achieve compliance with Council's Infrastructure Delivery Guide and Council's AUS-SPECs to:

Desired Outcome	Development Control Requirements
	i. minimise surface flooding; ii. protect environmental values of receiving waters; iii. maximise the use of water sensitive urban design, including rainwater harvesting and on-site re-use; iv. minimise safety risk to all persons and impacts on neighbouring property; v. maximise the use of natural waterway corridors and natural channel design principles. vi. Consider existing and future use incorporating climate change impacts vii. Council will not permit directly connected stormwater into kerb, gutter or table drains for any development other than that of a minor nature. **Note:** - Refer also Australian Rainfall and Runoff Guidelines (ARR 2019) and Bureau of Meteorology Intensity-Frequency-Duration (BoM IFD) data for design and modelling (MUSIC) with documented parameters and version, where required.
5. Transport	
5.1 Development is serviced by roads, public transport and active transport networks.	a. All new roads are designed in accordance with Council's AUS-SPEC design specification documents. b. Development provides roads, pathways and cycleways that are designed and constructed in accordance with Council's Infrastructure Design Guide.
5.2 Where development relies on access from or infrastructure within a Crown Road Reserve or other Crown Land then the development shall address all requirements, make all provisions, establish all necessary infrastructure and undertake the transfer of ownership to and for the purposes of that development at its own cost.	a. Transfer of the Crown Road/Land to private (development) control prior to subdivision certificate, construction certificate, or occupation; b. Road widening, drainage, utilities, and environmental works may be required; all costs associated with the transfer are to be borne by the applicant;
6. Telecommunications	
6.1 Development provides adequate telecommunications infrastructure to service the needs of the development.	a. Development is provided with telecommunications service as per the *Telecommunications (Consumer Protection and Service Standards) Act 1999*. b. Development is provided with access to the National Broadband Network (NBN) in accordance with the requirements of the relevant NBN provider (where available).

Table B.13 shown (next page) contains a summary of the development planning controls.

Table B.13 – Summary of Planning Development Controls – Essential Services

Table B.13 – General Summary of Planning Controls – Utilities Stormwater & Transportation									
Development	**Standard**			**Essential Services**					
Land-use Zone	***Typical Planning Development parameters*** *(Check LEP for all details)*			***Water Supply***	***Electricity***	***Sewage Treatment***	***Stormwater***	***Access (Road & Transport)***	***Telecommunications***
	MLS*	***HoB****	***FSR****						
R1, R3, RU5	500 m^2	8.5m	As per KLEP	Mains connection to each lot	Mains connection to each lot	Mains connection to each lot	On-site S/W mgmt to specified AEP level Overflow to legal S/W discharge point	To TfNSW relevant adjacent Road Class Standard. Single access point	To each lot Fibre to Premises where available
R3	As per KLEP	8.5m 11.0m	As per KLEP	Mains connection to each lot	Mains connection to each lot	Mains connection to each lot	On-site S/W mgmt to specified AEP level Overflow to legal S/W discharge point	To TfNSW relevant adjacent Road Class Standard. Single access point. Ingress/egress in a forward direction	To each lot Fibre to Premises
R5	1 ha	-	-	Where mains water is available, connection to each lot is required.	Mains connection to each lot	Approved OSMS in accordance with AS 1547-onsite disposal	On-site S/W mgmt to specified AEP level Overflow to legal S/W discharge point/water course	To TfNSW relevant adjacent Road Class Standard. Single Access	To each lot *(where physical connection is not available, wireless connection may be considered)*
R5 - Arakoon	1 ha	-	-	Where mains water is not available mains connection is not required. Onsite potable water supply	Mains connection to each lot	Approved OSMS in accordance with AS 1547-onsite disposal	On-site S/W mgmt to specified AEP level Overflow to legal discharge point (SW)	To TfNSW relevant adjacent Road Class Standard. Single access point.	To each lot *(where physical connection is not available, wireless connection may be considered)*
E1 – E3	-	-	As per KLEP (where applicable)	Mains connection to each lot	Mains connection to each lot	Mains connection to each lot	On-site S/W mgmt to specified AEP level Overflow to legal discharge point (SW)	To TfNSW relevant adjacent Road Class Standard. Access. Ingress/egress in a front direction	To each lot Fibre to Premises
	No lot size correlating to zone – Check LEP								
E4	-	-	0.5	Mains connection to each lot	Mains connection to each lot	Mains connection to each lot	On-site S/W mgmt to specified AEP level Overflow to legal discharge point (SW)	To TfNSW relevant adjacent Road Class Standard. Access. Ingress/egress in a front direction	To each lot Fibre to Premises
	No lot size correlating to zone – Check LEP								
RU4	8 ha	-	-	Where mains water is not available mains connection is not required. Onsite potable water supply	To each lot *Where mains are not currently available decentralised power may be considered to council's discretion*	Approved OSMS in accordance with AS 1547-onsite disposal	To Council's Infrastructure Delivery Guide and AUS-SPECs	To TfNSW relevant adjacent Road Class Standard. Single access point. Ingress/egress in a front direction	To each lot *(where physical connection is not available, wireless connection may be considered)*
RU1, RU2	40 Ha	-	-	Where mains water is not available mains connection is not required. Onsite potable water supply	To each lot *Where mains are not currently available decentralised power may be considered to council's discretion*	Approved OSMS in accordance with AS 1547-onsite disposal	To Council's Infrastructure Delivery Guide and AUS-SPECs	To TfNSW relevant adjacent Road Class Standard. Single access point. Ingress/egress in a front direction	To each lot *(where physical connection is not available, wireless connection may be considered)*
C2, C3, C4	40 Ha	-	-	Where mains water is not available, mains connection is not required. Onsite potable water supply	To each lot *Where mains are not currently available decentralised power may be considered to council's discretion*	Approved OSMS in accordance with AS 1547-onsite disposal	To Council's Infrastructure Delivery Guide and AUS-SPECs	To TfNSW relevant adjacent Road Class Standard. Single access point, Ingress/egress in a front direction	To each lot *(where physical connection is not available, wireless connection may be considered)*

***MLS** Minimum Lot Size **HoB** Height of Building **FSR** Floor Space Ratio
Note: This Table is a summary guide only, and does not contain details of other planning instruments such as State Environmental Planning Policies, Regional Environmental Plans and or related Acts that affect development in the Kempsey Shire local government area. All applicants must verify all requirements for their specific location and site from SEPPs and LEP and other regulatory policies, guidelines and codes.

B4 ABORIGINAL CULTURAL HERITAGE

Application

Part B4 applies to all development in the Kempsey Shire local government area that requires development consent pursuant to Clause 5.10 of KLEP.

Where an inconsistency arises between **Part B4** and any other Part of this DCP, **Part B4** will prevail to the extent of the inconsistency.

Aboriginal Cultural Heritage

Aboriginal cultural heritage refers to places, object and stories which are significant for Aboriginal people and the story of New South Wales.. There are many sites of special significance to Aboriginal communities and these should be preserved for all people, as a part of our collective heritage.

When reviewing whether any landscape features may indicate the potential for Aboriginal objects on the land, it is useful to consider that the coastline in the Macleay has moved over time. Objects, such as shell middens, may be located a considerable distance from the current coastline.

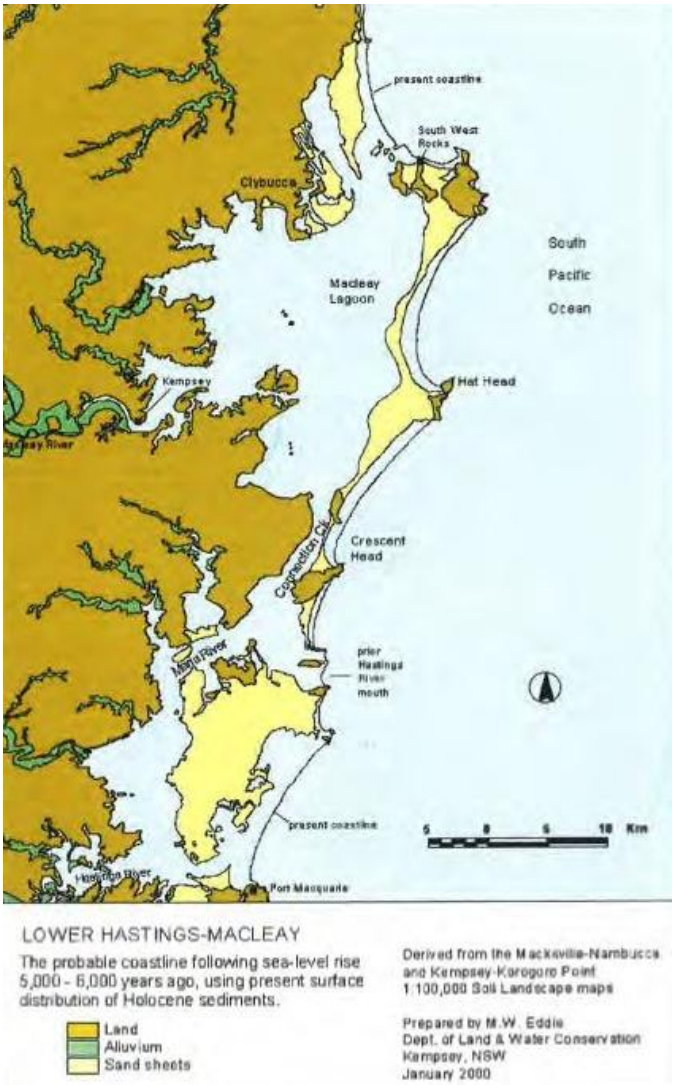


Figure B.5 – Indication of possible coastline within Macleay Valley 5000-6000 years ago

Due Diligence – Search and assessment
NSW Environment and Heritage keeps a register of all recorded Aboriginal objects and Aboriginal places in NSW. The register is called the Aboriginal Heritage Information Management System (AHIMS). Search the AHIMS to discover if an Aboriginal object has been recorded, or an Aboriginal place declared, on a parcel of land. However, surveys for Aboriginal objects have not been carried out in many parts of NSW, so Aboriginal objects may exist on a parcel of land even though they have not been recorded in AHIMS. Further details can be obtained about the AHIMS through the NSW Government website (www.environment.nsw.gov.au).

Note: Current official title of responsible Government entity is the NSW Department of Climate Change, Energy, the Environment and Water (DCCEEW) and National Parks and Wildlife Service.
A document Aboriginal Cultural Heritage Consultation Requirements for Proponents 2010 (the Consultation Requirements) focuses on the requirements for consultation with Aboriginal people as part of the heritage assessment process. The Consultation Requirements apply to all activities throughout New South Wales that have the potential to harm Aboriginal objects or places and that require an AHIP. It is also recommended that the Consultation Requirements be used where a proponent may be uncertain on whether or not their proposed activity may have the potential to impact on Aboriginal objects or places, and where the proponent is required to undertake a cultural heritage assessment to establish the potential impact that their proposal may have on Aboriginal cultural heritage. Details of the Consultation Requirements can be obtained from NSW Environment and Heritage.

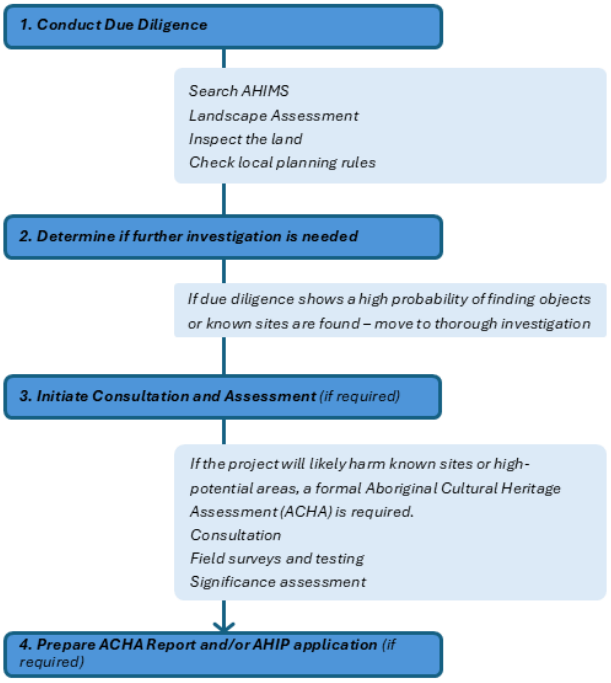


Figure B.6 – Aboriginal Cultural Heritage: Overall due diligence process

If development is going to disturb or excavate land and discovers an Aboriginal object, or disturbs or moves an Aboriginal object, an application for an Aboriginal Heritage Impact Permit (AHIP) from NSW Environment and Heritage (refer also **Figure B.6**) may be required. Further information is available on the OEH website (www.environment.nsw.gov.au). **Application Process – Due Diligence, Assessment and Requirements**
Aboriginal objects and places are protected in NSW under the National Parks and Wildlife Act 1974 (NPW Act), administered by NSW Government. The NPW Act makes it an offence to willingly and knowingly harm or desecrate an Aboriginal object or Aboriginal place without a permit. Harm is defined as destroying, defacing, damaging or moving an object from the land.

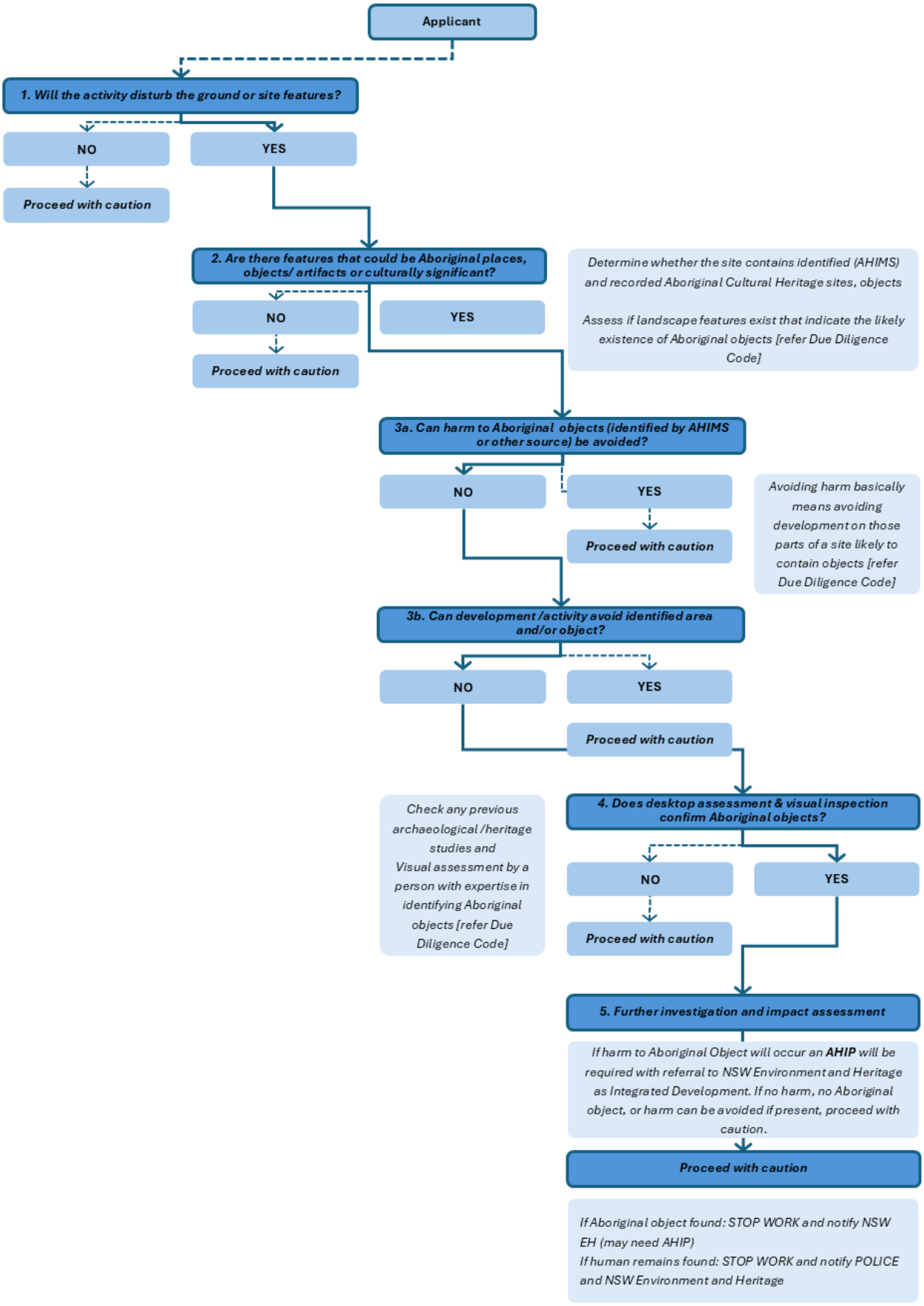


Figure B.7 – Aboriginal Cultural Heritage: Outline of process to identify, check and address impacts – refer NSW Environment and Heritage for full details

Objectives

1. To ensure that Aboriginal objects and places of heritage significance to Aboriginal people within Kempsey Shire are identified, conserved and protected.
2. To ensure development complies with all relevant legislation, policies and documents with respect to the management of Aboriginal cultural heritage.
3. To encourage development planning and design that considers "care for and connection with Country".

The following desired outcomes and development control requirements in **Table B.14** prescribe how the above objectives can be met.

Table B.14 – Aboriginal Heritage – desired outcomes and development control requirements

Desired Outcome	*Development Control Requirements*
1. *Legislative Requirements*	
1.1 Development meets the requirements of all relevant legislation, policies and documents, with respect to the management of Aboriginal Cultural Heritage.	Development meets the following requirements, where applicable: 1. *National Parks and Wildlife Act 1974*. The Act, administered by Environment and Heritage is the primary legislation for the protection of Aboriginal cultural heritage in New South Wales. The NPW Act provides statutory protection for all Aboriginal places and objects. **Note:** The provisions of the NPW Act in relation to Aboriginal cultural heritage will apply even in the event no development consent from Council is required. 2. "Due Diligence Code of Practice for the Protection of Aboriginal Objects in New South Wales", (NSW Environment and Heritage). This Code assists individuals and organisations to exercise due diligence when carrying out activities that may harm Aboriginal objects. 3. "Aboriginal Cultural Heritage Consultation Requirements for Proponents", (NSW Environment and Heritage). These requirements provide guidelines for consulting with the Aboriginal community. 4. "Code of practice for archaeological investigation of Aboriginal objects in NSW". (NSW Environment and Heritage). 5. "Guide to investigating, assessing and reporting on Aboriginal cultural heritage in NSW", (NSW Environment & Heritage). 6. "Applying for an Aboriginal heritage impact permit: guide for applicants 2010", (NSW Environment & Heritage). 7. All development applications are required to be considered against the provisions of any environmental planning instrument and development control plan, in accordance with section 4.15 of the *Environmental Planning and Assessment Act 1979* (EPA Act). Both KLEP and

Desired Outcome	*Development Control Requirements*
	this DCP require consideration of the potential impacts of development on Aboriginal cultural heritage. 8. An Aboriginal Heritage Impact Permit (AHIP), issued by the NSW Environment & Heritage, will be required for development that will have an impact on Aboriginal objects or places. Further information is available on the OEH website at www.environment.nsw.gov.au. If an AHIP is required, then the development may constitute Integrated Development in accordance with Division 4.8 of the EP&A Act. Integrated Development will need to be placed on public exhibition and additional development application fees will need to be paid. 9. Development must comply with the relevant development application requirements outlined in KLEP.
2. *Due Diligence and Assessment*	
2.1 Reasonable actions are undertaken to identify the potential for Aboriginal objects and Aboriginal places of heritage significance on development sites.	a. An Aboriginal Heritage Information Management System (AHIMS) search is undertaken to establish the presence or absence of any identified/ recorded Aboriginal Cultural Heritage sites and/or objects. b. Assess site landscape for features that suggest a high likelihood of Aboriginal occupation such as proximity to water (creeks, rivers and estuaries) ridgelines or rock shelters. c. For development that is located within landscape features that are likely to indicate presence of Aboriginal objects, a due diligence check in accordance with the Due Diligence Code is required to be submitted in support of the application.
3. *Protection and Conservation of Aboriginal Heritage*	
3.1 An adequate assessment to determine the likely impact on any Aboriginal object or place has been made, including measures required to manage any potential impacts.	a. The requirements of the NSW Environment and Heritage must be considered and addressed in a development application affecting land being of cultural significance to the local Aboriginal community. b. An Aboriginal Heritage Assessment Report is submitted with development applications. i. All development applications must be accompanied by an assessment of the cultural value of the affected land; ii. Each assessment must reflect the particular interests of traditional/tribal owners as well as consider the interest of the local Aboriginal community; iii. Appropriate management and security measures for ongoing protection of sites

Desired Outcome	*Development Control Requirements*
	must be included; and iv. Development applications must comply with the methodology and requirements of the "Guide to investigating, assessing and reporting on Aboriginal cultural heritage in NSW"
3.2 Development avoids or minimises harm to Aboriginal objects or Aboriginal places of heritage significance.	a. Any areas of Aboriginal cultural heritage value in, or adjoining, the proposed development (building footprint), including areas in the development site are identified and reasonable steps are taken to avoid harm to that heritage.
3.3 Development retains, conserves and does not detract from the features and cultural values of the Aboriginal object or declared Aboriginal place.	a. Development is appropriately sited to ensure the curtilage and setting of the Aboriginal object or declared Aboriginal place is retained and conserved.
3.4 Development is compatible with the Aboriginal cultural significance of the place.	a. Development avoids land containing high Aboriginal heritage sensitivity.
3.5 Development adjoining, or adjacent to, an Aboriginal object or Aboriginal place should have no physical impact on that object or place.	
4. Connecting with Country	
4.1 Development on Aboriginal heritage impacted site is designed to care for and connection with Country.	a. Development is appropriately designed and sited to ensure the visual and cultural heritage connections and values of native vegetation clusters, waterways, coastal waters, riparian lands and ridgelines are preserved and/or restored.
4.2 Development on Aboriginal heritage impacted site provides high quality Aboriginal cultural heritage interpretation at the site to improve understanding and sense of place within the community.	a. Development provides high quality Aboriginal cultural heritage interpretation at the site, appropriate for the level of heritage significance to improve understanding and connection to Country.

B5 DEVELOPMENT CONTRIBUTIONS

Application

Part B5 applies to any development that is required to provide development contributions.

Council's authority to levy contributions is derived from Section 7.11 or 7.12 (previous s94) of the *Environmental Planning and Assessment Act 1979* (Development Contributions Plans) and Developer Servicing Plans prepared pursuant to the *Water Management Act 2000*. Accordingly, Council's contribution requirements will be in accordance with a "s/b Section 7.11 or 7.12 Contributions Plan" or a Developer Servicing Plan.

A copy of Council's Contributions Plans are available on Council's website and will need to be reviewed to determine their applicability to each development application. Current fees and charges may be calculated by applying annual CPI to the listed contribution rate, or by contacting Council.

Objectives

1. To identify Council's requirements for development contributions, as provided for by Sections 7.11 and 7.12 (previous s94) of the *Environmental Planning and Assessment Act 1979* (Development Contributions Plans) and Developer Servicing Plans prepared pursuant to the *Water Management Act 2000*.

The following desired outcomes and development control requirements in **Table B.15** apply:

Table B.15 – Development Contributions

Desired Outcome	Development Control Requirements
1. All Development – Development contributions	
1.1 Development Contributions will be triggered by development applications, through: i. Current Section 7.11 and/or 7.12 (previous s94) Contribution Plans; and ii. Current Section 64 Development Servicing Plans.	a. Applicants/developers contribute towards the augmentation of local and arterial road works, open space, community, cultural and emergency services and centralized parking where upgrading requirements can be attributed to the development, in accordance with the relevant 7.11 and 7.12 (previously Section 94) Plans.
	b. Applicants/developers contribute to water supply and sewerage head works in accordance with relevant Development Servicing Plans.
	c. Where relevant, satisfactory alternatives to paying contributions, in whole or part, are agreed between Council and the applicant/developer. These alternative arrangements include: i. Voluntary Planning Agreements; ii. Works in kind; and/or iii. Dedication of land.